EXHIBIT C

UNITED STATES DISTRICT COURT

FOR THE SOUTHERN DISTRICT OF CALIFORNIA

UNITED STATES OF AMERICA, Plaintiff, v. ROBERTO A. SANDOVAL, Defendant.	Case No. 16-CR-01694-JLS Friday, January 24, 2025 Status Hearing

CERTIFIED TRANSCRIPT

BEFORE THE HONORABLE JANIS L. SAMMARTINO

UNITED STATES DISTRICT JUDGE

REPORTER'S TRANSCRIPT OF PROCEEDINGS

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APPEARANCES:

For Plaintiff: UNITED STATES ATTORNEY'S OFFICE
880 Front Street, Suite 6293
San Diego, California 92101-8807
BY: AMANDA GRIFFITH, AUSA

For Defendant: FEDERAL DEFENDERS OF SAN DIEGO
225 Broadway, Suite 900
San Diego, California 92101-5030
BY: JORDAN SCHAER, ESQ.
BY: LEILA MORGAN, ESQ.

Reported By: Stephanie Whitehead, RDR, CRR, CRC, CVR, CSR
District Court Clerk's Office
333 West Broadway, Suite 420, San Diego, California 92101
(Reported stenographically; transcribed via computer)

FRIDAY, JANUARY 24, 2025; 2:01 P.M.

* * *

THE CLERK: Matter number 16, 16-CR-1694, United States of America v. Roberto Antonio Sandoval for status hearing.

MS. GRIFFITH: Good afternoon again, your Honor. Amanda Griffith appearing on behalf of the United States.

PROBATION OFFICER: Good afternoon, your Honor. Kiana Johnson with U.S. Probation.

THE COURT: Thank you. Good afternoon.

MR. SCHAER: Can I have -- I'm sorry, your Honor. Jordan Schaer, Federal Defenders -- good afternoon -- appearing on behalf of Roberto Sandoval who is present and on supervised release standing to my left. I apologize, your Honor.

Could I have a brief indulgence to speak with Mr. Sandoval and with Leila Morgan, Federal Defenders, also appearing?

THE COURT: Certainly. And Ms. Griffith is here. I don't know what's going on. Let me take a short break. Tell Adrianna when you're ready. We'll come back and deal with it. Thank you.

MS. MORGAN: Thanks, your Honor. Appreciate it.

MS. GRIFFITH: Thank you, your Honor.

MR. SCHAER: Thank you, your Honor.

(Recess taken from 2:02 p.m. until 2:19 p.m.)

THE COURT: Okay. We put this over for you to have an opportunity to talk to your client a little bit further and disclosure of some information and whatnot. So where are we today? Who wants to go first?

Go ahead.

MR. SCHAER: Thank you for the Court's patience.

THE COURT: Of course.

MR. SCHAER: We are prepared to admit to the first allegation of non-compliance and join Probation's recommendation to continue Mr. Sandoval on supervised release.

THE COURT: Okay. Well, before I hear from everybody, let's start with an admission on the first allegation.

Go ahead, Adrianna.

THE CLERK: Roberto Antonio Sandoval, is that your true name?

THE DEFENDANT: Yes.

THE CLERK: The records show on August 23, 2017, you were before this Court at which time the Court sentenced you as follows: You were committed to the

custody of the Bureau of the Prisons for a period of 97 months and thereafter placed on 10 years supervised release upon the conditions as set forth in the original judgment and commitment.

And thereafter, on December 16, 2024, the Court signed an order to show cause why your supervised release should not be revoked on the grounds that, allegation number one, on or about August 4, 2024, Mr. Sandoval patronized websites where images of sexually explicit conduct of adults is the primary material or entertainment available, as evidenced by the forensic examination report dated October 7, 2024, and by Mr. Sandoval's own admission to the Probation officer on August 6, 2024.

Sir, do you admit or deny that you violated these conditions of your supervised release?

THE DEFENDANT: I admit.

THE COURT: Please raise your right hand.

(Defendant sworn.)

THE CLERK: Thank you.

THE COURT: Okay. Go ahead, Counsel.

MR. SCHAER: Thank you, your Honor. In this case Mr. Sandoval is struggling with issues involving sex addiction and the issues that brought him to this underlying case and found himself going first on Google,

and then going from Google to other websites that he now appreciates were websites where the primary material is sexually explicit conduct of adults.

Looking back, Mr. Sandoval realized that this was a huge slip-up in his path of rehabilitation. This lapse lasted less than 20 minutes one night. Mr. Sandoval admitted to it to the Probation officer, and worked to develop a safety plan from that point to further his rehabilitation.

Mr. Sandoval is absolutely committed to moving forward, working with his Probation officer, and does not want to appear before the Court on another petition. Mr. Sandoval is prepared to go to where he's receiving psychiatric services to evaluate if the medication that he is currently on is the right fit or if something else would be a better situation for him. And Mr. Sandoval is ready to do that and is in agreement that that is appropriate.

I know Mr. Sandoval wants to address the Court to explain further about what was going on, but he regrets this backtracking on his progress and is committed now to not letting this happen again.

THE COURT: Okay. And so you're going ahead with the recommendation to remove custody, keep him in the community with the conditions that are added by

Probation, and you've reviewed those conditions with your client?

MR. SCHAER: Yes. I have reviewed the conditions proposed with Mr. Sandoval. We have -- I've spoken about the conditions as well with Officer Johnson. You know, it's our understanding that, based on the first condition, that if Mr. Sandoval were to delete non-problematic files from his computer just using a recycle bin and pressing "Empty My Recycle Bin," that that would not be considered a violation.

And second -- or regarding the second condition that Mr. Sandoval would still be able to use office-type programs -- even if they include a cloud component, that he would still be able to use, such as Microsoft Word or Adobe Acrobat, and that he would be able to continue with his schoolwork and use those software packages even though they might contain a cloud-based storage program.

So with those -- with those understandings, yes.

THE COURT: Okay. Let me hear from Probation.

PROBATION OFFICER: Hello, your Honor. Since the start of Mr. Sandoval's supervision, he's been pretty forthcoming about his struggles with substance abuse as well as his sexual preoccupations. When this violation conduct was brought to Mr. Sandoval's

attention by myself, as well as his treatment team, we made it very clear about our concerns as it relates to his drinking, his sexual preoccupation, as well as his mental health.

At that time Mr. Sandoval was agreeable to enroll in substance abuse treatment as well as mental health counseling. At that time he agreed that he would sign a release of information. He then later changed his mind and said he would not sign the release of information.

Mr. Sandoval reported that he enrolled in mental health counseling; however, we've not been able to confirm that. Additionally, he reported that he also enrolled in substance abuse counseling. Again, we've not been able to confirm that.

Your Honor, once Mr. Sandoval was notified of the summons for this violation, it seemed as though his -- his mental state was heightened. He began sending countless e-mails to providers, as well as myself, attacking their business practices as well as my conduct as an officer. And so while counsel shares that Mr. Sandoval is willing to work with Probation, we are concerned with his mental health at this time. It's been very difficult for us to work with Mr. Sandoval in the community.

Also, most recently, his sex offender treatment has been suspended, according to his treatment provider, due to his mental health, specifically his paranoid state. The treatment provider is willing to accept him back once his mental health has been stabilized. So at this point, your Honor, we just would like it to be made clear should you impose -- we are recommending --

THE COURT: You're sticking with your recommendation?

PROBATION OFFICER: We are sticking with our recommendation --

THE COURT: Okay.

PROBATION OFFICER: -- requesting all of the conditions on page 6, in addition to a mental health condition, your Honor. We would ask that Mr. Sandoval -- should you impose those conditions, in addition to the mental health condition, that it be made clear to Mr. Sandoval that information will be shared with Probation, that his sex offender treatment model is a containment model where Probation works in conjunction with the treatment team as well as the polygraphers. That seems to be lost on Mr. Sandoval in some capacity, and so we would just ask that that be made explicitly clear.

THE COURT: Okay. Thank you.

Ms. Griffith.

MS. GRIFFITH: Your Honor, in light of the fact that Mr. Sandoval has accepted responsibility for the broach of the Court's trust, I will join in Probation's recommendation, but I need Mr. Sandoval to understand, and I think this Court should impress upon him that his supervised release has a dual purpose: One is to provide the treatment and containment for him and give him the support that he needs; and that Probation is an extension of this Court. That any time that Mr. Sandoval is engaging with Ms. Johnson, or other members of the United States Probation, their involvement is as a direct extension of your Honor. So I think that needs to be impressed upon Mr. Sandoval.

The other thing that I will say is that the protection of the community is paramount to the United States Attorney's Office. And I appreciate that Mr. Sandoval has a complex mental diagnosis, but as someone who's worked in this particular area before, that gives me concern regarding Mr. Sandoval's ability to conform to the conditions that are needed. And I think he needs to understand that the Court's obligation to protect the community is as equal as his own success on supervised release.

I think it is appropriate to get his mental

health conditions in check, make sure he's on the proper medication. I'm hopeful that that will then help with the rest of the conditions.

I would note that the conditions that are being added and recommended to being added just require him to work with his Probation officer; that there are no prohibitions regarding his use of the Internet so long as he keeps his Probation officer in check -- or, you know, makes them aware. And I'm appreciative of the fact -- and I don't want Mr. Sandoval to think it's lost on me -- that he did admit relatively early on to the violations, and he did admit, at least to his Probation officer, and did admit to the slip-ups, if you will, in October. And that is going to go a long way.

But Mr. Sandoval has a very long road ahead of him, and this Court will work with him to a certain extent, but if his conduct then creates a trust issue with respect to the safety of the community, Mr. Sandoval is not likely going to be in another position where he gets to appear before your Honor on a summons and essentially negotiate his release and ability to work through these violations within the community.

And with those caveats -- and I'm hoping Mr. Sandoval is hearing what everybody is saying and

will take that to heart as he moves forward after today's hearing in going forward because we want Mr. Sandoval to be successful.

THE COURT: Do you know how many years are left on his supervision?

MS. GRIFFITH: Your Honor, I believe he's only been out, I think it's 18 months, maybe a little bit more than two years. Similar to other similarly situated defendants that I've had, even with Ms. Morgan, in light of the fact that we're essentially starting over, I would ask the Court to reimpose the full 10 years.

THE COURT: Ten years.

MS. GRIFFITH: I think it is important that he have the longer runway, if you will, to ensure the safety of the community to give him the success and also to serve as a protective barrier between Mr. Sandoval's sexual preoccupation urges, his history of alcohol abuse, and his DUIs. I think it's important that if he wants to start over, then we start over in its entirety. So reimpose the 10 years and go forward with what hopefully will be a clean state and Mr. Sandoval's personal commitment that he wants to be as successful as his attorney is representing him to be.

THE COURT: Okay. Did you want to add anything

about the supervision?

PROBATION OFFICER: We submit to you, your Honor.

THE COURT: Okay. Mr. Sandoval, you've heard what everybody has had to say to the Court. Is there anything you want to add, sir, or tell me?

THE DEFENDANT: Just that I believe they are presenting their perspective on some of their complaints, and I believe a lot of it is mischaracterizations. I believe the concerns that I brought to the attention of my sex offender treatment provider and the polygrapher are not the result of paranoid thinking. I mean, they're just questions about confidentiality, requesting copies of documents that I have to sign when I take polygraph tests.

I mistakenly believed that I also had the right to an assurance that anything I admitted in the polygraph test wouldn't be used against me, but then it was clarified that that's only during the sexual history polygraph where a new charge could be brought. So I understand now that I may have been mistaken on that, but other than that, to equate those concerns with paranoia, I just see as mischaracterizations.

Other than that, as Mr. Schaer has shared, I am deeply regretful of the mistake I made on August 4th,

and it was an isolated incident. I had been on probation for over a year, and I haven't repeated that specific type of behavior since August 4th. And as Mr. Schaer noted, and even the discovery shows, it went on for about 20 minutes when I finally decided, okay, I'm going to stop.

THE COURT: Okay. Let me ask your counsel this: Mr. Schaer, Probation indicated that they have not been able to confirm mental health counseling or substance abuse counseling which is pretty fundamental to getting things back on track.

So can you -- can you shed any light on that? Now speak to -- your client wants to respond. Make sure --

MR. SCHAER: Brief indulgence, your Honor.

THE COURT: Of course.

MR. SCHAER: So, your Honor, Mr. Sandoval just shared with me an e-mail that he sent to Officer Johnson. She's confirming to see if she might not have received it, but I am looking at an e-mail on his phone that shows that he sent this release on January 10th, a signed release for where he's receiving care.

THE COURT: For mental health and substance?

MR. SCHAER: Yes.

THE COURT: Okay. We'll let her take a look at

it and confirm.

MR. SCHAER: And, if not, we'll make sure that Officer Johnson gets it after this hearing.

THE COURT: Okay.

PROBATION OFFICER: Yes, your Honor. This was an oversight on my part. It looks like he did send it.

THE COURT: Okay. Well, that's a good thing. That's a good thing, Mr. Sandoval, Mr. Schaer. I'm happy to hear that.

You understand, sir, that in light of your willingness to take responsibility and admit what's happened here, the Court will follow the recommendation that's being urged upon the Court, which is, in lieu of custody is to maintain you on supervision. But I'm going to extend the supervision to its original term of 10 years, and we're going to be adding some conditions.

This is all meant to assist you and to help you. And fundamental to that help and assistance is exactly what you've shown Probation and sent to them, and that was a good thing: It's mental health and substance abuse. And then once those are maintained and established, then we can go on and work on the underlying issues that support here -- that are required here.

All the conditions on page 6 and page 7 of the

petition dated December 16, 2024, are going to be included as part of your supervision.

And Mr. Schaer, you've reviewed those in depth with your client?

MR. SCHAER: Yes, your Honor.

THE COURT: Okay. Very well. Those are meant, Mr. Sandoval, to do a number of things. Number one, to help you. Number two, because of the nature of what we've got here, to protect the community and protect the public.

And you need to understand this is all being done under the umbrella of the Court. Probation is part of the court. So if you ignore Probation you're ignoring the Court. Things don't go well, you end up here, and I sanction that.

Do you understand that?

THE DEFENDANT: (No audible response.)

THE COURT: Everybody would like you to succeed, and so your admission is the first step in that direction. And so I think that's a good thing, but do you understand what I'm saying about Probation and the Court? Think of us as one and the same. They're an extension of the Court's authority to work with you.

Do you understand that?

THE DEFENDANT: Yes.

THE COURT: And you understand the importance of protection of the public and complying with these conditions. Ms. Griffith pointed out these conditions require you to work with Probation. Talk to them. They'll work with you. That's what it's all about. It's a safety net for you. If there's an issue, you call them. You work with them.

Do you understand?

THE DEFENDANT: Yes, your Honor.

THE COURT: Do you accept all these new conditions?

THE DEFENDANT: Yes, your Honor with the caveat of the Microsoft and Adobe cloud storage apps.

MR. SCHAER: As I mentioned earlier, with the understanding, your Honor, that routine programs like Microsoft Word and Adobe Acrobat are still permissible, even though they have a cloud storage component, so long as he is not using the cloud component.

PROBATION OFFICER: Yes, your Honor. We don't have any issues with that.

THE COURT: Okay. Very well. So that's true, and that helps, doesn't it?

THE DEFENDANT: Yes.

THE COURT: Okay. Anything I didn't cover? Everybody wants you to succeed. Do you understand that?

THE DEFENDANT: Yes, your Honor.

THE COURT: It's hard. It takes work.

THE DEFENDANT: I understand.

THE COURT: But we took the first step here today, and that's a good thing. Okay.

PROBATION OFFICER: Your Honor, I just wanted to make sure that the mental health condition is included in that.

THE COURT: Oh, I'm sorry. I didn't explicitly say it. I've written it here. The mental health condition is the one condition added to pages 6 and 7 because that's not explicitly stated.

Thank you. Thank you. The mental health condition, a critical component. The drug condition is already here.

MR. SCHAER: For my benefit --

THE COURT: Ms. Griffith, anything you want to add?

MS. GRIFFITH: I think Mr. Schaer wanted --

MR. SCHAER: If the Court could read the mental health condition out just so I make sure I have it.

THE COURT: Okay.

MR. SCHAER: So we understand what exactly the Court is ordering.

THE COURT: Certainly.

MS. GRIFFITH: Your Honor, I think it mirrors the alcohol condition. It's participate in a program of mental health treatment, including treatment and counseling as directed by a Probation officer. So the language, my understanding, is -- nope? Sorry. Nevermind. I'm getting a shaking of the head from Ms. Burke.

PROBATION OFFICER: Your Honor, it reads: "Participate in a program of mental health treatment as directed by the Probation officer. Take all medications as prescribed by the psychiatrist, and not discontinue any medication without permission. The Court authorizes the release of the presentence report and available psychological evaluations to the mental health" --

THE COURT: Slow down. Slow down.

THE COURT REPORTER: Thank you, your Honor.

PROBATION OFFICER: Sorry.

"The Court authorizes the release of the presentence report and available psychological evaluations to the mental health provider as approved by the Probation officer.

"Allow for reciprocal release of information between the Probation officer and the treatment provider. May be required to" continue -- "to contribute to the cost of services rendered in the

amount to be determined by the Probation officer based on ability to pay."

THE COURT: Okay.

PROBATION OFFICER BURKE: We can also e-mail that to your CRD.

THE COURT: Oh, thank you. Thank you.

And do you understand, Mr. Sandoval, we are not compartmentalized as human beings. Your mental health, your substance abuse, the sex treatment, they all interrelate in one person. And so it's important that people be able to share the information and look at you as a whole person. And so this is very important.

Any other questions, Counsel?

MR. SCHAER: I'll note that Mr. Sandoval is receiving mental health services, and he plans to continue working with them.

THE COURT: And that's a good thing, and that's taken into account in the resolution that we're having here today, which is a favorable one.

Anything else from anybody? Check your notes. Make sure I've included everything. The mental health condition --

MR. SCHAER: I have one last thing, your Honor.

THE COURT: Oh, okay.

MR. SCHAER: Ms. Griffith asked to revoke

supervised release and reinstate the 10-year term. And I just want to make it clear that our position is that the Court should continue Mr. Sandoval on his current term of supervised release, and to not revoke but continue forward from here.

THE COURT: What I said was in lieu of custody I was going to maintain him on supervision but extend the supervision to its original term of 10 years.

MR. SCHAER: Right.

THE COURT: So that's what I said, or something close to that. I don't have it written out, but something close to that I think I said.

MS. GRIFFITH: Your Honor, I think defense counsel is just -- he would like --

THE COURT: He would like it to be --

MS. GRIFFITH: -- the existing term, and we want the full 10 years again.

THE COURT: You know, Counsel, if things go well, you know what you can do: You can come in here, you can ask for modifications and whatnot. But let's get this incentivized to go forward on the right track. I appreciate what you're saying.

I understand your concerns too, Mr. Sandoval. We all do. But everybody here is pulling for you, sir. Okay?

THE DEFENDANT: Thank you, your Honor.

THE COURT: Good luck to you. Anything else?

MS. GRIFFITH: No, your Honor.

THE COURT: I keep looking at Ms. Griffith, but you're the one who has the concerns and the questions. Anything else?

MR. SCHAER: If I could just take a brief --

THE COURT: Take a moment. Oh, of course.

MR. SCHAER: And make sure we don't have anything else?

THE COURT: Of course. Take a moment.

MS. MORGAN: Nope. We're good.

THE COURT: Thank you.

MS. MORGAN: Thank you, your Honor.

MR. SCHAER: Thank you, your Honor.

THE COURT: Thank you so much to Probation. Thank you all.

MR. SCHAER: Thank you, your Honor. Have a good day.

THE COURT: You too. You're welcome.

Have a good weekend, Mr. Sandoval.

THE DEFENDANT: You too.

THE COURT: Thank you, Ms. Griffith.

MS. GRIFFITH: Thank you, your Honor.

(Proceedings concluded at 2:42 p.m.)

C E R T I F I C A T E

I, Stephanie Whitehead, certify that I am a duly qualified and acting Official Court Reporter for the United States District Court; that the foregoing is a true and accurate transcript of the proceedings as taken by me in the above-entitled matter on January 24, 2025; and that the format used complies with the rules and requirements of the United States Judicial Conference.

Dated: April 1, 2025

s/ STEPHANIE WHITEHEAD

Stephanie Whitehead, CSR 10093
U.S. Official Court Reporter